

3294, subd. (c)(3).) The FACC alleges that Romo knew he would be quitting after obtaining cash advances and that these were requested with no intent to repay them. (FACC, ¶ 7.) This is sufficient. The court will not strike the punitive damages.

Emotional Distress Damages

Emotional distress damages are an available remedy for a conversion claim. (*Gonzales v. Personal Storage, Inc.* (1997) 56 Cal.App.4th 464, 477.) The court has overruled the demurrer as to the cause of action for conversion. Thus, the court will not strike the request for emotional distress damages.

Labor Code Policies and Retaliation

Labor Code section 98.6 makes it unlawful to retaliate against an employee for bringing a wage dispute. However, Romo has not pointed to a portion of the Labor Code which prevents an employer from bringing claims against an employee regarding funds allegedly wrongfully taken by the employee. Additionally, Romo asserts, without citing to any authority, that the FACC must be stricken as retaliatory. The court will not strike the FACC based on either of these assertions.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 31, 2026.
(Judge's initials) (Date)

(29)

Tentative Ruling

Re: **Neill v. Wallace**
Superior Court Case No. 25CECG04308

Hearing Date: September 1, 2026 (Dept. 403)

Motion: Motion for Summary Judgment

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 31, 2026.
(Judge's initials) (Date)